

UNREPRESENTED SELLER DISCLOSURE AND FEE AGREEMENT

(Selling Agent Represents the Buyer)

This Agreement is entered into on (Date) _____ by and between _____ as "Seller", and _____ ("Firm")

RECITALS:

- A. Seller is the owner of property commonly known as _____ (the "Property").
- B. Seller is endeavoring to sell the Property without the assistance of a licensed real estate agent; however, Firm has a client, _____ ("Client") who would like to see the Property.
- C. If Seller sells the Property to Firm's Client, Seller agrees to pay Firm a fee of _____ ("Fee").

D. THE AGENT (FIRM) SHALL CONDUCT ALL BROKERAGE ACTIVITIES IN REGARD TO THIS AGREEMENT WITHOUT RESPECT TO THE RACE, COLOR, RELIGION, SEX, NATIONAL ORIGIN, HANDICAP OR FAMILIAL STATUS OF ANY PARTY OR PROSPECTIVE PARTY. FURTHER, REALTORS® HAVE AN ETHICAL DUTY TO CONDUCT SUCH ACTIVITIES WITHOUT RESPECT TO THE SEXUAL ORIENTATION OR GENDER IDENTITY OF ANY PARTY OR PROSPECTIVE PARTY.

Accordingly, the parties agree as follows:

1. **FEE:** The Fee will be deemed earned if Seller enters into a contract to sell the Property to Firm's Client at any time within _____ days from the date Seller signs this Agreement. Once earned, the Fee will be due and payable at the earlier of closing or Seller's failure to sell the Property as a result of Seller's default on the contract. HOWEVER, if, prior to the expiration of this Agreement and the execution of a contract to sell the Property, Seller enters into a valid listing agreement with any real estate firm, Seller shall NOT be obligated to pay the Fee if the listing firm offers compensation to Firm.
2. **BUYER AGENCY:** Seller acknowledges that Firm is the agent representing Client with respect to the Property. As the agent of Client, the Firm has the duty to act on behalf of the Client, and will not be acting on behalf of Seller. This duty requires that all information regarding this transaction given to the Firm by Seller be disclosed to Client. For example, if Seller discloses to Firm that Seller is compelled by outside circumstances to sell by a certain date, or that Seller is prepared to lower the price, the Firm would be required to disclose this information to Client. Seller is advised to keep this in mind when communicating with Firm. By signing this Agreement, Seller acknowledges that this Client agency relationship has been previously orally disclosed to Seller when Firm first discussed an appointment to show Property to Client.

[THIS SPACE INTENTIONALLY LEFT BLANK]

**DO NOT SIGN THIS FORM UNTIL YOU HAVE RECEIVED AND READ THE
“WORKING WITH REAL ESTATE AGENTS” DISCLOSURE**

Seller and Firm each acknowledge receipt of a signed copy of this document.

THE NORTH CAROLINA ASSOCIATION OF REALTORS®, INC. MAKES NO REPRESENTATION AS TO THE LEGAL VALIDITY OR ADEQUACY OF ANY PROVISION OF THIS FORM IN ANY SPECIFIC TRANSACTION.

SELLER:

Date: _____

Seller: _____

Date: _____

Seller: _____

Entity Seller:

(Name of LLC/Corporation/Partnership/Trust/etc.)

By: _____

Name: _____

Title: _____

Date: _____

FIRM:

By: _____

Date: _____